

#	Case Name	
1	Annevelink vs. Watson 2025-01496571	Motion to Appoint Receiver The court will speak with parties.
2	Biocorr, Inc. vs. VDM Biochemicals, Inc. 2021-01195606	Motion for Limited Discovery Motion for Leave to File Amended Cross-Complaint Court will hear argument.
3	Chau vs. Ho 2025-01492515	Demurrer to Amended Complaint The Demurrer by Defendants International Buddhist Cultural Heritage Foundation (“Foundation”) and Tang Ho aka Thich Vien Ly (“Defendant Ly”), to the First Amended Complaint by Plaintiff Huong Chau (“Plaintiff”), is sustained in part and overruled in part. Foundation’s demurrers to the ninth, tenth, and twelfth causes of action are sustained with leave to amend. The remainder of the demurrers are overruled. <u>9th, 10th, and 12th COA</u> The demurrers by Foundation are sustained, because Plaintiff has not alleged facts showing that Foundation is an “employer” as statutorily defined by Government Code sections 12926 or 12940. The allegations in the FAC reflect that Foundation is a religious association (or entity) that is exempt from the FEHA claims. (See FAC at ¶¶ 5-6., subd. (j)(4)(B).) However, Defendants fail to cite any authority that this defense would apply to Plaintiff’s non-FEHA claims. As such, the Court sustains the Foundation’s demurrers to the 9th cause of action for harassment based on FEHA, 10th cause of action for retaliation in violation of FEHA, and 12th cause of action for discrimination/harassment/retaliation based on FEHA, with leave to amend. Defendant Ly’s demurrer to the 9th COA for harassment is overruled. Defendants contend Defendant Ly cannot be personally liable because he is not alleged to be Plaintiff’s “employer” (as opposed to a “supervisor”) for the purpose of a discrimination claim under FEHA.

Defendants concede that individual supervisors can be sued for harassment under FEHA, but argue that Plaintiff's claims against Defendant Ly "really consists of acts other than harassment," like failing to pay her minimum wage, or providing rest breaks and sick days. (Dem. at p. 5.) This argument is not persuasive because Plaintiff expressly alleges in the FAC that Defendant Ly also "subject[ed] her to gender harassment." (See FAC at ¶ 75.) Even if Defendant Ly cannot be personally liable for the wage claims, a demurrer "does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1681-1682.)

11th, 13th, 16th Through 20th COA

Defendants contend that Plaintiff's claims are also barred under the "ministerial exception," a "doctrine rooted in the First Amendment's guarantees of religious freedom." (Dem. at p. 6.)

The "ministerial exception" is based on the First Amendment's prohibition against making any laws "respecting an establishment of religion, or prohibiting the exercise thereof." (*Lorenzo v. San Francisco Zen Center* (2025) 116 Cal.App.5th 258, 269 [citation omitted]; see also *Hope Internat. University v. Superior Court* (2004) 119 Cal.App.4th 719, 734 [ministerial exception is "a 'nonstatutory, constitutionally compelled' exception to federal civil rights legislation"].) It "operates to preclude application of employment discrimination laws to certain claims arising out of the employment relationship between a religious institution and its ministers." (*Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1337.)

"The basic contours of the ministerial exception as now developed in the common law are fairly stable." The test is whether "the employee's duties 'go to the heart of the church's function in the manner of a minister or a seminary teacher.'" (*Hope Internat. University*, supra, 119 Cal.App.4th at p. 734.) "In order to be considered 'clergy,' an employee's primary duties must " 'consist of teaching, spreading the faith, church governance, supervision of a religious order, or supervision or participation in a religious ritual and worship....' " If the employee is determined to be "clergy," then "[t]he rule is about as absolute as a rule of law can be: The First Amendment guarantees to a religious institution the right to decide matters affecting its ministers' employment, free from the scrutiny and second-guessing of the civil courts." (*Ibid.* [internal citations omitted].)

Here, the Court rejects the application of the ministerial exception to Plaintiff's wage and hour claims (i.e., her 16th, 17th, 18th, and 19th causes of action). (See *Lorenzo*, supra, 116 Cal.App.5th at p. 272

		[holding that ministerial exception does not bar plaintiff’s wage-and-hour claims].) “Although religious organizations enjoy autonomy in “matters of ‘faith and doctrine’ ” and “ ‘ “church government,” ’ ” they do not “enjoy a general immunity from secular laws.” (Ibid., quoting <i>Our Lady of Guadalupe School v. Morrissey-Berru</i> (2020) 591 U.S. 732, 746.) Notably, California courts have expressly acknowledged that, “a series of Ninth Circuit decisions have applied the ministerial exception to bar wage-and-hour claims by ministers,” yet our courts have declined to follow these (non-binding) federal decisions. (See, e.g., <i>Lorenzo</i>, supra, 116 Cal.App.5th at p. 276 [noting that “the Ninth Circuit has provided little or no analysis to support its overly broad interpretation of the ministerial exception”].) Additionally, the Court overrules the demurrers to the wage and hour claims <i>and</i> the remaining claims for retaliation, wrongful termination, and unfair business practices, because it cannot be determined, as a matter of law, that Plaintiff was a “minister” or “clergy” that would fall under the exception. (See <i>Our Lady of Guadalupe School v. Morrissey-Berru</i> (2020) 591 U.S. 732, 746.) Defendants point to the allegations that Plaintiff is a “Buddhist nun,” had been for “approximately twenty years,” and “was in line for leading her own Buddhist temple” in Vietnam before coming to the Foundation. (Dem. at p. 9.) However, Plaintiff does not allege facts in the FAC showing that she was employed by Defendants to perform any functions that the ministerial exception was intended to protect. The job duties she describes in her FAC are secular in nature (e.g., cooking meals, processing donations, cleaning the office, providing janitorial and gardening services). (See FAC at ¶ 16.) At this juncture, the Court cannot determine whether the ministerial exception applies to any of Plaintiff’s claims. (See <i>Atkins</i>, supra, 90 Cal.App.5th at 1345 [reversing judgment and vacating order granting summary judgment].) Plaintiff shall have 30 days to file and serve her amended pleading. Defendants shall give notice of the ruling. Case Management Conference Continued to 8/31/26 at 9:00 a.m.
4	Dobbs vs. SC Wings Buena Park, LLC 2025-01522372	Motion to Compel Arbitration Defendant SC Wings Buena Park, LLC’s (“Defendant”) Petition for Order Staying Action and Requiring Plaintiff Charles Shon Dobbs (“Plaintiff”) to Arbitrate the Controversy is granted.